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2026.PHHC.087095



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRM-M-25219-2026
Decided On: 09.06.2026**

HARPREET SINGH ALIAS AJAY RAJPURIA

....PETITIONER(S)

VERSUS

STATE OF PUNJAB

....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. Sandeep Wadhawan, Advocate and
Mr. Gurjot Singh, Advocate for the petitioner

SANDEEP MOUDGIL, J. (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.238 dated 25.10.2024 under Sections 281, 106, 324(4) BNS (earlier Sections 279, 304A, 440 IPC) Sections 103, 105, 61(2) BNS (earlier Sections 302, 304, 120-B IPC) added later on registered at Police Station Sadar Amritsar, District Police Commissionerate Amritsar.

2. Contention

On behalf of the petitioner

Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case. It is contended that the petitioner has been nominated in the FIR solely on the basis of disclosure statements

made by co-accused, namely Tejbir Singh and Jarnail Singh, who have already been acquitted vide judgment dated 22.01.2026.

It is further submitted that prosecution witnesses PW1 Sourav Masih and PW2 Sukhwinder Singh have not supported the case of the prosecution and have turned hostile. The petitioner further submits that he is ready and willing to join the investigation and cooperate fully with the same.

Notice of motion.

On behalf of the State

On the asking of the Court, Mr. Yatin Bungar, AAG Punjab accepts notice on behalf of the respondent–State and vehemently opposes the prayer made by learned counsel for the petitioner stating that the allegations against the petitioner are serious in nature.

3. Analysis

Having heard learned counsel for the parties and perused the record, this Court finds that the petitioner has been nominated in the FIR primarily on the basis of disclosure statements of co-accused, namely Tejbir Singh and Jarnail Singh, who have already been acquitted vide judgment dated 22.01.2026. It is also noticed that prosecution witnesses PW1 Sourav Masih and PW2 Sukhwinder Singh have not supported the case of the prosecution and have turned hostile.

The petitioner has further undertaken in para 16 of the present petition that he is ready and willing to join the investigation and shall fully cooperate in its furtherance. Therefore, this Court finds no reason to decline the present petition.

4. Relief:-

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stand cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

09.06.2026

NainaRajput

<i>Whether speaking/reasoned</i>	<i>:Yes/No</i>
<i>Whether reportable</i>	<i>:Yes/No</i>